

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nathaniel Flack	Team: Squad #03	CCRB Case #: 201607927	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 08/13/2016 2:00 AM	Location of Incident: Midtown North stationhouse	18 Mo. SOL 2/13/2018	Precinct: 18		
Date/Time CV Reported Thu, 09/15/2016 12:37 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 09/15/2016 12:37 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Denise Moroney	08740	947785	MTN DET
2. POF Maris Garcia	09729	949005	MTN PCT
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Abdur Siddique	24115	953403	MTN PCT
2. POM Adam Kotowski	30966	958774	MTN PCT
3. POM Vincent Bianco	12398	957383	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Maris Garcia	Abuse: On August 13, 2016, Police Officer Maris Garcia refused to provide her name and/or shield number to § 87(2)(b)	A . Unfounded
B . An officer	Abuse: On an unknown date in August 2016, an officer refused to provide his name and/or shield number to § 87(2)(b)	B . Officer(s) Unidentified
C . POF Denise Moroney	Off. Language: An an unknown date in August 2016, Police Officer Denise Moroney made remarks to § 87(2)(b) based on § 87(2)(b) perceived mental health.	C . Unsubstantiated
D . An officer	Abuse: On an unknown date in August 2016, an officer threatened to remove § 87(2)(b) to a hospital.	D . Officer(s) Unidentified

Case Summary

§ 87(2)(b) filed this complaint in person at the CCRB on September 15, 2016, during her interview for CCRB case number § 87(2)(b)

At approximately 2:00 am on August 13, 2016, § 87(2)(b) visited the Midtown North stationhouse in Manhattan, in order to file a criminal complaint regarding what she viewed as harassment by her doorman. She was assisted by PO Adam Kotowski of the Midtown North Precinct, who was assigned to the complaint room. § 87(2)(b) and PO Kotowski disagreed with respect to how the complaint would be handled, and PO Maris Garcia of the Midtown North Precinct joined them in the complaint room to assist PO Kotowski in understanding and entering § 87(2)(b)'s complaint. When § 87(2)(b) asked PO Garcia for her name, PO Garcia allegedly did not respond and left the room (**Allegation A**). PO Kotowski ultimately entered a criminal complaint for § 87(2)(b) regarding some of the harassment § 87(2)(b) described, but she left the stationhouse prior to the rest of complaints being entered.

§ 87(2)(b) returned to the Midtown North Precinct stationhouse later in August 2016 to file further complaints, but she was not certain of the date of this visit, and the date could not be determined by the investigation. During this second visit, § 87(2)(b) again differed with officers as to how her complaints should be handled. A male officer allegedly refused to provide his name to § 87(2)(b) (**Allegation B**). § 87(2)(b) was allegedly told by PO Denise Moroney of the Midtown North Precinct that she “needed help emotionally” (**Allegations C**). Another male officer threatened to have § 87(2)(b) taken to a hospital if she did not leave the stationhouse (**Allegation D**).

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- As of December 6, 2016, § 87(2)(b) has not filed a Notice of Claim with the Office of the Comptroller regarding this incident.

Civilian and Officer CCRB Histories

- This is § 87(2)(b) second complaint with the CCRB § 87(2)(b)
- This is PO Garcia's second CCRB complaint in six years in the NYPD. § 87(2)(b)

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- This is the third CCRB complaint filed against PO Moroney in 8 years with the NYPD. In 200916126, allegations of a stop, frisk, and retaliatory summons were substantiated by the CCRB, and the NYPD penalized her with Instructions. § 87(2)(g)

Potential Issues

- During her interview (Board Review 01), § 87(2)(b) referred to a civilian employee of the police department named § 87(2)(b) who assisted her in attempting to file a complaint during her second visit to the stationhouse. All officers said they were unaware of any female civilian employee at the Midtown North Precinct with the last name § 87(2)(b) and NYPD documents did not list anyone working by that name at the Midtown North Precinct. The investigation was therefore unable to identify this individual, determine whether she did in fact witness the incident, or obtain a statement from her.

Findings and Recommendations

Officer Identification

- During her CCRB interview, § 87(2)(b) regularly referred to copious notes, written in notebooks as well as across the front and back of folders and pieces of scrap paper she had brought with her, and said that she had written the notes during the incidents she described. She said during the interview that she needed more time to collate these notes in order to provide information requested by the investigation, including the date for the second incident she described and detailed physical descriptions of the subject officers. Attempts to elicit these details from § 87(2)(b) following the interview received either no reply, or replies which were not responsive to the substance of the investigator's request for information. The investigation requested from IAB all Complaint Reports filed by § 87(2)(b) at the Midtown North Precinct during August 2016, and received negative results (Board Review 12). The investigation was later provided a Complaint Report filed on August 13, 2016 (Board Review 03) at the Midtown North Precinct, but no second Complaint Report from August 2016 was identified. § 87(2)(g)

Roll Call documents obtained for PO Moroney (Board Review 13) did not aid in identifying the date for this incident, given that PO Moroney's tour on August 17 did not match the time provided by § 87(2)(b) and that she did not work on August 20, 2016. Additionally, § 87(2)(b) could not describe any of the officers she interacted with and relied on her notes to identify the officers. § 87(2)(g)

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- Even though no date was provided, § 87(2)(b) provided PO Moroney's name from her notes for the second incident § 87(2)(g)

Allegation Not Pleaded

- PO Bianco said during his interview at the CCRB (Board Review 02) that § 87(2)(b) requested his name and shield number as he stood at the telephone switchboard desk on August 13, 2016. Given that § 87(2)(b) did not make any allegation that PO Bianco or any male officer refused to provide his name or shield number on August 13, 2016, and that PO Bianco said he provided his name and shield number on request, § 87(2)(g)

Allegation A: Abuse of Authority - On August 13, 2016, Police Officer Maris Garcia refused to provide her name and/or shield number to § 87(2)(b)

In her interview at the CCRB, § 87(2)(b) said that on August 13, 2016, she went to the Midtown North Precinct stationhouse to file a criminal complaint regarding what she viewed as harassment by her doorman. Inside the stationhouse, § 87(2)(b) described the complaint to PO Garcia, who would not file the complaint and said that, based on § 87(2)(b)'s description, the doorman's conduct was not illegal. § 87(2)(b) asked for PO Garcia's name, and PO Garcia refused to provide it to § 87(2)(b) by not responding and walking away. PO Kotowski helped § 87(2)(b) file a complaint against her doorman, and provided PO Garcia's name and his own to § 87(2)(b) when she asked.

PO Garcia said in her CCRB interview (Board Review 04) that she was working at the telephone switchboard desk when § 87(2)(b) entered the stationhouse. PO Garcia told her to sign the guest book at the front and sit in the waiting area. § 87(2)(b) sat in the seating area until PO Kotowski came to get her a short time later. PO Kotowski then returned to behind the complaint room window, while § 87(2)(b) approached the window from the civilian side. PO Garcia was busy answering phone calls and could not hear what was being said in the complaint room. After a short time, PO Kotowski looked over to PO Garcia, who could see that he was confused and needed help. PO Kotowski was a relatively new officer at the time of the incident. PO Garcia then went behind the window in the complaint room. PO Kotowski was having difficulty filing a report because § 87(2)(b) was "switching her story." When PO Garcia tried to tell § 87(2)(b) that some of the complaints could not be filed, § 87(2)(b) ignored her and turned towards PO Kotowski to speak to him instead. PO Garcia thought that § 87(2)(b) did not want to speak with her because she was not in uniform. PO Garcia then went back to the telephone switchboard desk.

Before § 87(2)(b) left the stationhouse, she could hear § 87(2)(b) ask PO Kotowski for as PO Garcia's name. PO Kotowski provided his own name, but said that § 87(2)(b) would have to ask PO Garcia for her name. At that point, § 87(2)(b) approached PO Garcia at the telephone switchboard desk and asked for her name. PO Garcia said, "Officer Garcia." § 87(2)(b) said she would write the name down in her book, which PO Garcia said would be okay. § 87(2)(b) then

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left the stationhouse. PO Garcia never refused to provide her name or shield number to § 87(2)(b) or heard any officer do so.

§ 87(2)(g)
§ 87(2)(b). PO Kotowski and PO Garcia were working together in the complaint room when § 87(2)(b) first arrived. PO Garcia left the complaint room to work behind the transit switchboard desk during the discussion with § 87(2)(b) about her complaints, but PO Kotowski was not sure exactly when. After PO Garcia left the complaint room, § 87(2)(b) asked PO Kotowski for both officers' names. PO Kotowski did not know PO Garcia's name at the time of the incident because he was new to the precinct, but he provided his own and told § 87(2)(b) that they could figure out PO Garcia's name later. Before leaving the stationhouse, § 87(2)(b) went over to the telephone switchboard desk and asked PO Garcia for her name, which PO Garcia provided. PO Kotowski did not recall hearing any officer, including PO Garcia, refusing to provide their name or shield number to § 87(2)(b) on August 13, 2016. PO Kotowski said that PO Vincent Bianco of the Midtown North Precinct may have been present and briefly interacted with § 87(2)(b) in the complaint, but was not sure.

PO Bianco said in his CCRB interview (Board Review 02) that he was the first person § 87(2)(b) spoke to when she entered the stationhouse. He did not recall if PO Garcia was present at all during the incident. § 87(2)(b) told him she wanted to file a criminal report, so he directed her to the complaint room. PO Kotowski was the officer assigned to the complaint room. § 87(2)(b) proceeded to the complaint room to speak with PO Kotowski. PO Bianco could not hear anything that either PO Kotowski or § 87(2)(b) were saying.

About ten minutes later, § 87(2)(b) exited the complaint room and approached PO Bianco at the telephone switchboard desk. § 87(2)(b) asked PO Bianco for his name and shield number, and he said "Bianco, 13398." He saw § 87(2)(b) write his name down in a notebook. She told PO Bianco that the officer in the complaint room was failing to file her report. PO Bianco followed § 87(2)(b) back into the complaint room. PO Kotowski had a partially completed Complaint Report form out on the table in the complaint room. PO Kotowski told PO Bianco that § 87(2)(b) was telling several different stories at the same time and that he could not figure out how to make a report.

PO Bianco never heard PO Garcia or any other officer refuse to provide their or shield number to § 87(2)(b) and never heard § 87(2)(b) complain that any officer had refused to do so. He did not hear her request any other officer's shield number. PO Bianco did not recall § 87(2)(b) interacting with any officers besides himself and PO Kotowski during the incident.

PO Siddique said in his CCRB interview (Board Review 06) that he saw § 87(2)(b) enter the Midtown North Precinct stationhouse while he was posted outside. He did not speak to her as she entered, and did not hear her say anything. When PO Siddique entered the stationhouse to use the restroom during his tour, he saw § 87(2)(b) waiting inside. PO Siddique did not observe § 87(2)(b) interacting with any officers or doing anything in particular. Later in his tour, still posted outside the stationhouse, PO Siddique observed § 87(2)(b) exit the stationhouse. He did not

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Later in his tour, PO Siddique asked PO Kotowski, who had been inside the stationhouse while § 87(2)(b) was there, if “everything was alright.” PO Kotowski responded, “Yea, § 87(2)(b) was just filing a report.” PO Siddique did not say what led him to ask PO Kotowski if everything was alright. PO Siddique did not recall if any additional officers, including PO Garcia, had been present in the stationhouse with § 87(2)(b) or interacted with her. PO Siddique did not hear § 87(2)(b) request any officer’s name, and did not hear any officer, including PO Garcia, refuse to provide their name to her.

Officers are required to courteously and clearly their name, rank, and shield number when requested by a civilian. PD 203-09 (Board Review 07).

§ 87(2)(g) [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it is recommended that **Allegation A** be closed as **Unfounded**

Allegation C: Discourtesy – On an unknown date in August 2016, Police Officer Denise Moroney made remarks to § 87(2)(b) based on § 87(2)(b) perceived mental health.

§ 87(2)(b) said during her CCRB interview that she returned to the Midtown North precinct on either August 17, 2016 or August 20, 2016, at approximately 12:30 am. She spoke to PO Siddique, who provided his name to § 87(2)(b) but at first refused to file a report, saying that they did not have any report forms. A male officer was standing behind the desk or near a desk, and refused to provide his name to § 87(2)(b). A civilian employee of the police department helped § 87(2)(b) begin to file a complaint. This civilian then brought over PO Moroney. PO Moroney told § 87(2)(b) that she “needed help emotionally.” Another male officer was also

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present and told § 87(2)(b) that she had to leave or that he would call an ambulance and have her “taken away” to a hospital.

PO Moroney said in her CCRB interview (Board Review 08) that on August 17, 2016, PO Moroney worked a Detective Squad assignment from 8 am until 4:15 pm. On August 20, 2016, she did not work. PO Moroney did not specifically remember any interactions with any civilians inside the Midtown North Precinct stationhouse on August 17, 2016, or during the week following that date. PO Moroney said that she constantly interacts with emotionally disturbed people, and that no specific interactions from the period of time in question came to mind. PO Moroney did not know how § 87(2)(b) obtained her name. PO Moroney did not ever tell § 87(2)(b) that she “needed help emotionally.” PO Moroney did not recall any other officer at the Midtown North Precinct threatening to remove § 87(2)(b) to the hospital, refusing to provide her their name or shield, or saying that she “needed help emotionally.”

PO Kotowski said that he heard that § 87(2)(b) came back to the stationhouse several days after the August 13, 2016 incident, but he did not recall who told him that and was not told what day it was or anything else about that subsequent visit.

PO Bianco said that, to his knowledge, § 87(2)(b) had not returned to the Midtown Precinct after the August 13, 2016 incident, nor has she had any subsequent interactions with any officers at the Midtown North Precinct Stationhouse

PO Siddique never heard an officer tell § 87(2)(b) that she needed emotional help. He did not know if PO Moroney had ever said that to § 87(2)(b). He has not ever heard an officer tell § 87(2)(b) she would be taken to a hospital if she did not leave the stationhouse, or threaten to remove to hospital in general, and did not know if PO Moroney had ever said something to that effect to § 87(2)(b). PO Siddique did not hear § 87(2)(b) request any officer’s name or shield number on any occasion. PO Siddique has not heard any officer refuse to provide their name to § 87(2)(b). PO Siddique did not hear § 87(2)(b) complain of being refused an officer’s name, complain of being threatened with removal to the hospital, or complain of being told she needed emotional help, at any point in August of 2016.

PO Garcia said she did not know if § 87(2)(b) had ever visited the Midtown North Precinct stationhouse after the August 13, 2016 incident, but that she was not present for any such visit and had not heard about it.

Officers are required to courteously and clearly their name, rank, and shield number when requested by a civilian. PD 203-09 (Board Review 07). Officers are prohibited from making disrespectful remarks regarding another person’s disability. PG 203-10 (Board Review 09).

A person who appears to be mentally ill or temporarily deranged, and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others, must be removed to the hospital. PG 221-13 (Board Review 10). Gratuitous comments, which serve no purpose other than to intimidate, constitute an abuse of an officer’s authority. PD v. Briscoe, OATH Index No. 13289/00 (Board Review 11).

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§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED], it recommended
that **Allegation C** closed as **Unsubstantiated**.

§ 87(2)(g) [REDACTED].
Therefore, it is recommended that **Allegations B** and **D** are closed as **Officer Unidentified**,

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

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